

## STATEMENT OF KEY TAKEAWAYS AND CURRENT POSITION

*Nadia Zahmoul — Litigant in Person — 7 April 2026*

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### WHO I AM

I am a disabled woman with formal diagnoses of Autism Spectrum Condition (CLAAS, Central London Adult Autism Service, 1 July 2025), Post-Traumatic Stress Disorder (DSM-IV diagnosis, Cottonwood Tucson, Arizona, April 2013), and Sjogren syndrome, a chronic autoimmune condition confirmed by biopsy and affecting my daily functioning. I have been managing three concurrent diagnosed conditions without legal representation throughout four parallel High Court proceedings since 2020. I have a BSc in Economics from the London School of Economics and an MBA in Finance from Columbia Business School. I do not have a background in law.

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### THE ORIGINATING ERROR

In April 2024, MacDonald J handed down a 111-paragraph final judgment in financial remedy proceedings between myself and the respondent. The judgment contains zero references to my disability despite the trial transcript recording 22 references to those conditions during oral evidence and despite participation measures having been ordered for the hearing.

Paragraph 64 of that judgment found that I was 'obsessed' with demonstrating that the respondent had hidden assets. That finding was built from my presentation in the witness box — everything trying to emerge at once, very obvious distress. That presentation is the clinical presentation of autism under adversarial stress. The court had ordered participation measures because of it. The judgment attributed it to character instead.

**Para 64 is the originating error. Everything that followed compounded it.**

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### THE FINANCIAL CONSEQUENCE

The originating error at para 64 generated two financial penalties in the same proceedings. First: an £800,000 add-back from my share of the matrimonial assets for 'reckless expenditure on legal costs'. Second: a costs order of £255,654.50 for 'litigation misconduct at the extreme end of the scale'. Both penalties were imposed on the same conduct. Both trace back to para 64.

The total financial penalty imposed on a disabled woman in proceedings where the court had ordered, and then silently removed, the measures designed to ensure her equal participation: £1,055,654.50.

In addition: the participation measures ceased on or about 28 February 2024 without order, without notice, without reassessment. HMCTS confirmed in its letter of 14 November 2025 that no judicial order records the revocation. I lost legal representation on 7 March 2024, directly caused by the respondent's breach of the maintenance pending suit order. I was excluded from the costs submissions, the order drafting process, and every subsequent procedural step. The final order was drafted unilaterally by the respondent's side. Its face confirms this in its own recitals.

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## THE APPELLATE SEQUENCE

Every court that reviewed the proceedings adopted the prior court's findings without re-examining their basis.

Moylan LJ (December 2024) applied Volpi v Volpi to para 64 and found it was 'plainly open' to the judge. Volpi protects evidence-based findings. Para 64 is not evidence-based. The Coinbase ground, the MPS ground, EA 2010 s.149 as a standalone duty, and the post-trial participation void were not addressed.

King LJ (August 2025) found that Moylan LJ had 'engaged with all of the extensive grounds' without identifying what he had said about any of the four unaddressed grounds. The domestic appellate route was closed.

The recusal application I filed from 10 February 2025, submitted daily, was never listed and never determined. MacDonald J sat on 8 May 2025 and made findings of 'wholly satisfied... actively and deliberately sought to frustrate' against me. The 8 May 2025 judgment is 68 paragraphs. It contains zero mentions of the recusal application.

Collins Rice J (March 2026) refused JR permission, certified the claim Totally Without Merit, and imposed a further costs order of £3,125.50 against me as a disabled litigant without any recorded engagement with EA 2010 s.149. She characterised the claim as relating to judicial determinations without identifying the judicial act governing any of the five grounds. The defendant's own summary grounds did not identify one either.

**Four matters have never been addressed at any level of the domestic courts: the MPS causal exclusion chain; Coinbase non-disclosure; EA 2010 s.149 as a standalone duty; and the post-trial participation void. The appellate route closed over them, not through them.**

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## THE OXUS AND IMERMAN GROUNDS: WHY THE JR DISMISSAL IS UNACCEPTABLE

Two of the five JR grounds were of particular public importance. Both were dismissed without any engagement with their substance. Together they establish why the JR was not a peripheral application but a claim of significant public interest.

### The Oxus perjury ground

The following facts are documented in public SEC filings, trial transcripts, and contemporaneous correspondence. They are not contested.

On 16 January 2024 — 34 days before trial — the respondent signed an SEC Proxy Statement and Prospectus (CIK 1852973) stating that his 50,000 Oxus Founder Shares had a total market value of approximately \$565,000, based on the Nasdaq closing price of \$11.30 on 11 January 2024.

On 7 February 2024 — 12 days before trial — the Oxus Business Combination closed. The performance condition triggering recognition of his shares was met.

On 8 February 2024 — 11 days before trial — the respondent was photographed at the Nasdaq Exchange in New York at the public launch of the new company (BRLS / Borealis Foods). The photograph was posted by Kenes Rakishev on his Instagram account at 4:45pm EST and published on Nasdaq's own website.

On 22 February 2024 — under oath, in the witness box — he testified that his Oxus shares had no value: \$0. He made no reference to the Closing Date, the Nasdaq listing, or the photograph. His counsel repeated the \$0 figure in submissions on 19, 26 and 28 February 2024.

This was a false statement. The shares were publicly traded on Nasdaq and had a market value of approximately \$550,000 at that time.

On 6 March 2024, his counsel emailed the court asking the judge not to read my submission concerning the Oxus perjury. On 7 March 2024, I filed a D11 application. It was not sealed. The judgment of 18 April 2024 is entirely silent on the Oxus perjury.

On 21 May 2025, I filed a formal referral to the Attorney General (Lord Hermer KC) requesting that he consider bringing contempt proceedings in respect of the false representations. The referral was addressed to the Attorney General's office, copied to the SEC Chairman and all four SEC Commissioners, the Lord Chancellor, the Lady Chief Justice, and a wide parliamentary distribution. It attached the contempt application, identifying the three false representations directed by the respondent through his counsel on 19, 26 and 28 February 2024, with supporting exhibits. No response was received. No acknowledgement was provided. The Attorney General did not act.

Every subsequent court addressed the Oxus issue as a civil factual findings question — whether the judge's findings were 'open to him on the evidence' — not as a perjury question. On 8 May 2025, MacDonald J dismissed the contempt application on the ground that Oxus was 'not matrimonial property.' That ground is legally irrelevant to perjury. The Perjury Act 1911 s.1 requires materiality to the proceeding — a \$565,000 asset declared as \$0 in a financial remedy hearing is plainly material — not matrimonial classification.

An open criminal investigation has been confirmed by IRS Criminal Investigation, Special Agent Robert McGarry, New York Field Office. The SEC whistleblower submission TCR 17284-760-060-567 is on record. The perjury allegation has never been addressed on its merits by any domestic court. Every route — D11, final judgment, contempt application, Attorney General referral, Court of Appeal, Judicial Review — has been closed without the central question ever being answered: was the sworn statement of \$0 true or false?

### **Kenes Rakishev — why this matters beyond the family proceedings**

Kenes Rakishev appointed the respondent to the Oxus board in June 2022 and they were photographed together at the Nasdaq Exchange 11 days before trial. He is not peripheral to this case.

Dame Margaret Hodge named Rakishev in Parliament on 3 February 2022 as one of 20 Kazakhs with massive unexplained wealth, with close ties to the political elite and to Ramzan Kadyrov — sanctioned by OFAC under the Magnitsky Act. His company Kazakhstan Paramount Engineering manufactures Arlan MRAPs, one of which was identified in Mariupol in April 2022 with Kadyrov's forces, raising questions of UK and US sanctions evasion.

On 19 February 2026, Andrew Mountbatten-Windsor was arrested on suspicion of misconduct in public office during his tenure as the UK's Special Representative for International Trade and Investment from 2001 to 2011. This involves dealings with Kenes Rakishev and the Kazakh network which in the past have come under scrutiny, including the sale of Mountbatten-Windsor's former house at Sunninghill Park in 2007, allegedly for £3 million over the asking price. An April 2011 email confirms Andrew brokered a £385 million deal via Rakishev while serving as UK Special Representative for Trade and Investment.

The Rakishev/Oxus strand in my case and the Thames Valley Police investigation are not unconnected. They concern the same network. The dismissal of the JR without addressing the Oxus ground — without identifying a single judicial act governing it — removes the only domestic public law mechanism by which this connection could have been examined.

### **The Imerman chain of custody ground**

Electronic devices containing material of potential criminal relevance — referenced in my conduct statement and oral evidence at trial — were seized and retained pursuant to court process. The material on those devices includes prostitution invoices, Xero bookkeeping records, and cryptocurrency money laundering documentation. It has been referred to throughout the proceedings as the 'Pinocchio' material.

No lawful administrative process for the custody, review, audit or disposal of those devices has ever been identified. No judicial act has ever determined their status. Hughes Fowler Carruthers, when asked for clarification in January 2026, redirected the Claimant to the State. The State has not provided an audit trail. A criminal referral in respect of the Imerman chain of custody failure is being prepared.

**Collins Rice J dismissed the JR as wholly misconceived without identifying the judicial act governing either the Oxus or the Imerman ground. The defendant could not identify one. The dismissal is not a determination of these grounds. It is a procedural foreclosure. These matters remain live, unaddressed, and of significant public interest.**

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## THE CRIMINAL DIMENSION

In parallel, I have made criminal referrals to: the Metropolitan Police (CCR-6501-26-0100-000; CRN 01/7340002/26); the IRS Criminal Investigations New York (active engagement); the SEC Whistleblower Program (TCR 17284-760-060-567); the Attorney General (Lord Hermer KC, 21 May 2025 — no response); and Action Fraud (referral in progress).

The core criminal allegation is perjury in sworn financial disclosure. The respondent testified under oath on 22 February 2024 that his Oxus shares had \$0 value. He had signed an SEC filing on 16 January 2024 valuing those same shares at approximately \$565,000. The logic analysis documents that every domestic court reframed this as a civil factual dispute. The perjury allegation has never been addressed as a criminal allegation at any level of the domestic courts.

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## THE LOGIC ANALYSIS

I have built a forensic logic analysis across six of the sixteen decisions in this case. Each document applies an IF/AND/THEN/THEREFORE structure to the findings, grounded in primary sources — court documents, transcripts, sealed orders, clinical records — that are publicly archived and independently verifiable.

Four analytical tags apply: FABRICATED (finding made without evidential basis or contradicted by the record); MISCHARACTERISED (court answered a different question); SUPPRESSED (material evidence or pending application not referenced); UNSUPPORTED (conclusion asserted without reasoning).

Three master rules apply: the Disability Rule; the Procedural Void Rule; and the Appellate Compounding Rule.

**The binary question: does an identifiable judicial determination of the actual case — on its actual evidence, with its actual clinical context, with its actual pending applications determined — exist? As at 6 April 2026: it does not.**

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## WHERE I STAND AS AT 7 APRIL 2026

### Active proceedings

- AC-2025-LON-004293 — Administrative Court — JR permission refused 11 March 2026, certified Totally Without Merit. Application to revoke filed 12 March 2026 under CPR 3.1(7) — sealed by the court. Response outstanding. The Oxus perjury ground and the Imerman chain of custody ground remain formally raised and undetermined at any level of the domestic courts.
- BV20D01752 — Family Division — Final order not implemented. S.39 Senior Courts Act 1981 invoked by MacDonald J on 8 May 2025 to sign transfer documents on my behalf. Recusal application: filed daily from 10 February 2025, never determined.

- BL-2024-001217 — Chancery — Detach Lending Limited v Zahmoul. Hearing vacated 12 March 2026. N244 set-aside application unheard. Relist pending. Work on this matter follows the police referral.
- FA-2026-000019 — Family Appeals — Decree Absolute appeal filed 19 January 2026. No hearing listed. Standstill.

### Criminal referrals

- Metropolitan Police: CCR-6501-26-0100-000 and CRN 01/7340002/26. Complete package submitted 30 March 2026.
- Action Fraud: referral in progress — to be completed tonight.
- IRS:CI New York: active engagement.
- SEC Whistleblower: TCR 17284-760-060-567.

### Parliamentary and institutional

- Justice Committee: formal submission filed 7 April 2026.
- Andy Slaughter MP: package sent 27 March 2026.
- Lord Chancellor (David Lammy KC MP): Statement of Institutional Failure v2 sent 27 March 2026.
- PHSO C-2182742: chase outstanding.
- EHRC 14765260: chase outstanding.

### Logic analysis — complete

- Decision 4 — EWFC 79 (Final judgment)
- Decision 6 — EWFC 114 (Costs)
- Decision 8 — Moylan LJ (PTA refused)
- Decision 12 — MacDonald J May 2025 (Set-aside dismissed)
- Decision 13 — King LJ (Reopen refused)
- Decision 15 — Collins Rice J (JR refused)

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## WHAT I REQUIRE

I require the Justice Committee to open an urgent inquiry into the systemic institutional failures documented in this submission and in the attached logic analysis. I require the Administrative Court to address AC-2025-LON-004293 properly and expeditiously — specifically to answer whether an identifiable judicial act governs each of the five grounds, and to address the Oxus and Imerman grounds on their merits. I require the Metropolitan Police and Action Fraud to act on the criminal referrals already submitted.

I am a disabled woman. I have a BSc from the LSE and an MBA from Columbia. I do not have a background in law. The harm began in February 2024. It is ongoing. The documentation is complete. The logic is sound. The evidence is publicly archived. I am not asking for these matters to be considered. I am requiring them to be addressed.

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### Nadia Zahmoul

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Case references: BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217 | FA-2026-000019  
Crime references: CCR-6501-26-0100-000 | CRN 01/7340002/26 | SEC TCR 17284-760-060-567  
Archive: <https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive>